TENTATIVE RULING:

Plaintiff Lamond King and counsel for Defendant Moises Ramirez are ordered to appear for a Case Management Conference.

3. 9:00 AM CASE NUMBER: C25-03666
CASE NAME: CHRIS DAVIS VS. VIVINT SOLAR DEVELOPER, LLC
***CASE MANAGEMENT CONFERENCE**
FILED BY:
TENTATIVE RULING:

If the tentative rulings go uncontested, further Case Management Conference is set for November 30, 2026. If either Party challenges the tentative ruling on Line 14, a Case Management Conference will be held.

Law & Motion

4. 9:00 AM CASE NUMBER: C23-02194
CASE NAME: STEPHANIE SENNA VS. THE JOINT CORP
***HEARING ON MOTION IN RE: FINAL APPROVAL**
FILED BY: SENNA, STEPHANIE
TENTATIVE RULING:

Plaintiff Stephanie Senna moves for final approval of her class action and PAGA settlement with defendant John Muir Health. The Court granted preliminary approval on February 2, 2026.

A. Background and Settlement Terms

The original complaint was filed on August 31, 2023, raising class action claims on behalf of non-exempt employees, alleging that defendant violated the Labor Code in various ways, including failure to pay minimum and overtime wages, failure to provide meal breaks, failure to provide proper wage statements, failure to reimburse necessary business expenses, and failure to pay all wages due on separation. An amended complaint adding additional PAGA claims was filed October 8, 2025.

The settlement would create a gross settlement fund of $1,400,000. The class representative payment to the plaintiff would be $10,000. Attorney’s fees would be $490,000 (35% of the settlement). Litigation costs would not exceed $25,000. The settlement administrator’s costs (ILYM) would not exceed $12,000. PAGA penalties would be $50,000. The net amount paid directly to the class members would be about $825,000. The fund is non-reversionary. The average net payment for each class member is approximately $1,058.93, with the highest payout being $5,220.92.

Because one set of LWDA notices in question were filed before June 19, 2024, while the other was filed after that date, penalties attributed to the earlier notice must be allocated 25% to the aggrieved employees, while those attributed to the later notice must be allocated 35% to the aggrieved employees. (Labor Code §2699(m), (v)(1).) $40,000 of the payment is to be split 75%/25%

and $10,000 of the payment is to be split 65%/35%.

The proposed settlement would certify a class of all current and former non-exempt employees employed by Defendant during the class period. The class administrator calculated 47,295.14 workweeks and 776 class members. The class list contained 842 individuals, who worked 58,218.58 workweeks. The escalator provision of the settlement agreement was triggered, and Defendant shortened the class period to end December 7, 2024, lowering the class number to 775—which increased by one member after the notice period expired.

The class members are not required to file a claim. Notice was mailed to all members of the class, who were given an opportunity to opt out of the settlement or to object. (Aggrieved employees cannot opt out of the PAGA portion of the settlement.) No class member submitted an opt-out. Funds would be apportioned to class members based on the number of workweeks worked during the class period.

Various prescribed follow-up steps have been taken with respect to mail that is returned as undeliverable. 101 notice packets were returned or undeliverable, and 80 of those were remailed but 21 have been deemed undeliverable. Checks undelivered or uncashed 180 days after mailing will be voided, and will be forwarded to the California Controller's Unclaimed Property Fund.

The settlement contains release language covering "all claims arising during the Class Period that were alleged, or reasonably could have been alleged, based on the facts stated in the Complaints[.]" (Settlement, Pars. 5, 5.2.) The limitation to those claims with the "same factual predicate" as those alleged in the complaint is critical. (*Amaro v. Anaheim Arena Mgmt., LLC* (2021) 69 Cal.App.5th 521, 537 ["A court cannot release claims that are outside the scope of the allegations of the complaint." "Put another way, a release of claims that goes beyond the scope of the allegations in the operative complaint' is impermissible." (*Id*., quoting *Marshall v. Northrop Grumman Corp*. (C.D. Cal.2020) 469 F.Supp.3d 942, 949.)

Informal and formal written discovery was undertaken, and counsel had the information evaluated by outside experts. The matter settled after arms-length negotiations, including a session with an experienced mediator.

Counsel also has provided an analysis of the case, and how the settlement compares to the potential value of the case, estimating the recovery on the class claims relative to their potential values, breaking down the analysis claim-by-claim.

The potential liability needs to be adjusted for various evidence and risk-based contingencies, including problems of proof. PAGA penalties are difficult to evaluate for a number of reasons: they derive from other violations, they include "stacking" of violations, the law may only allow application of the "initial violation" penalty amount, and the total amount may be reduced in the discretion of the court. (See Labor Code, § 2699(e)(2) [PAGA penalties may be reduced where "based on the facts and circumstances of the particular case, to do otherwise would result in an award that is unjust arbitrary and oppressive, or confiscatory."])

The LWDA was notified of the settlement.

B. Legal Standards

The primary determination to be made is whether the proposed settlement is "fair, reasonable, and adequate," under *Dunk v. Ford Motor Co*. (1996) 48 Cal.App.4th 1794, 1801, including "the strength of plaintiffs' case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the state of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction … to the proposed settlement."

Because this matter also proposes to settle PAGA claims, the Court also must consider the criteria that apply under that statute. Recently, the Court of Appeal's decision in *Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, provided guidance on this issue. In *Moniz*, the court found that the "fair, reasonable, and adequate" standard applicable to class actions applies to PAGA settlements. (*Id.*, at 64.) The Court also held that the trial court must assess "the fairness of the settlement's allocation of civil penalties between the affected aggrieved employees[.]" (*Id*., at 64-65.)

California law provides some general guidance concerning judicial approval of any settlement. First, public policy generally favors settlement. (*Neary v. Regents of University of California* (1992) 3 Cal.4th 273.) Nonetheless, the court should not approve an agreement contrary to law or public policy. (*Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; *Timney v. Lin* (2003) 106 Cal.App.4th 1121, 1127.) Moreover, "[t]he court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter." (*California State Auto. Assn. Inter-Ins. Bureau v. Superior Court* (1990) 50 Cal.3d 658, 664.) As a result, courts have specifically noted that *Neary* does not always apply, because "[w]here the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutatory purpose." (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 48, 63.)

C. Attorney fees, costs, and representative payment

Plaintiffs seek 35% of the total settlement amount as fees, relying on the "common fund" theory. Even a proper common fund-based fee award, however, should be reviewed through a lodestar cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the use of a lodestar cross-check as a way to determine whether the percentage allocated is reasonable. It stated: "If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment." (*Id*., at 505.)

Counsel have provided an estimate of their lodestar fee. They estimate that they have expended 203.7 hours to date, ranging from $600 to $1,500 per hour. This results in a lodestar of $168,145, yielding an implied multiplier of 2.91. They provide no declaration regarding their highest biller by hourly rate, Justin Marquez, other than a brief footnote. The other counsel all have graduated from law school within the last 5 years, and their own data do not sufficiently support a billing rate of $850 for a fifth year associate. Instead, the data show that the *third quartile* of generically titled "associates" can rise to $875. Thus, the lodestar calculation is somewhat higher than ordinarily would be justified.

The Court agrees that the lodestar cross check "does not override the trial court's primary determination of the fee as a percentage of the common fund and thus does not impose an absolute maximum or minimum on the potential fee award." (*Lafitte, supra*, 1 Cal.5th at 505.) But the Court has a fiduciary duty to the class, and in some cases that duty requires that the fee be reduced.

A number of issues must be considered here. First, the fees were contingent on prevailing, and accordingly, some adjustment for the risk of loss is appropriate. As to preclusion of other employment, there may be some preclusion, but a total of about 203.7 hours, spread over just over two years, suggests that it was not substantial. Another consideration is the result obtained. It is certainly sufficient to warrant approval, but is not extraordinary. The issue is whether there is anything about this case that justifies a higher than usual fee. As noted previously, the case did not involve exceptional risk—this type of case nearly always settles. It is complex, but not especially novel, since the claims made here are common. The resolution after two years of litigation is not especially early. Counsel will be well-compensated for their work, and the possibility that an attorney's fee could be reduced somewhat smaller multiplier in a given case would not discourage counsel from taking this type of case.

The Court awards fees of $350,000 (which is 25% of the size of the fund), and which still constitutes an implied multiplier of 2.08.

The litigation costs are reasonable and are approved.

As to the requested representative payment of $10,000, Ms. Senna attests that she participated in the litigation, took the risk of liability for costs, and that her participation could hurt her chances of being hired by other employers. She estimates his time spent at 35 hours. She also provided a general release, although she does not indicate that she had any other claims with value. Based on the criteria for evaluation of such requests set forth in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-807 (particularly the size of the award relative to the recovery), the request for a representative payment is approved but it is reduced to $5,000. The difference shall be awarded to the class.

D. Discussion and Conclusion

The moving papers sufficiently establish that the proposed settlement is fair, reasonable, and adequate to justify final approval.

The motion is granted, with the change in attorney's fees and representative payment as indicated. Counsel are directed to prepare an order reflecting this tentative ruling, and the other findings in the previously submitted proposed order and a separate judgment. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented, the date for which should be obtained through consultation with the Department clerk. Plaintiffs' counsel are to submit a compliance statement one week before the compliance hearing date. 5% of the attorney's fees are to be withheld by the claims administrator pending satisfactory compliance as found by the Court.

5. 9:00 AM CASE NUMBER: C23-02891
CASE NAME: TAKENYA CLINTON VS. THE PERMANENTE MEDICAL GROUP